



Procedure No: EXP202212830

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On October 12, 2022, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against TRC TRUCKS 2020, S.L. with NIF B56085038 (hereinafter, the defendant).

The reasons on which the complaint is based are as follows:

On September 29, 2020, the complainant began working for the company TRC TRUCKS 2020 SL.

Prior to this, an interview was conducted by B.B.B., sister of the administrator of the defendant.

This employment relationship ended on September 30, 2020.

On October 1, 2020, the complainant exercised the right to erasure before the defendant, which was not attended to.

On November 12, 2020, the complainant filed a complaint regarding this matter, which led to the opening of procedure TD/00045/2021.

On April 12, 2022, a favorable resolution was issued, requiring the defendant to send a certification to the complainant addressing the right to erasure or to deny it with justification.

According to the complainant, at the time of filing the present complaint, the requirement made in the resolution of the aforementioned procedure had not been fulfilled.

The complainant states that, following the erasure request made on October 1, 2020, the defendant could not process their data.

On November 5, 2020, the complainant received a notification identifying them as the responsible driver for a traffic violation committed on August 20, 2020.

After receiving the aforementioned document, they contacted the issuing center of the notification to inform them that they did not know either the offending vehicle or its owner.

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At the same time, they filed a complaint with the Civil Guard on that same day.

On November 12, 2020, the complainant requested a report from the General Directorate of Traffic regarding the offending vehicle in order to obtain the details of its owner.

The mentioned administration informed them that the vehicle belongs to B.B.B.

On November 13, 2020, the complainant received another notification identifying them as responsible for a traffic violation committed on June 21, 2020, by B.B.B.'s car.

This notification prompted the expansion of the complaint filed with the Civil Guard.

The complainant states that B.B.B. improperly accessed their personal data to subsequently use it with the intention of harming them.

According to the complainant, from the facts and evidence provided with the complaint, it is evident that the defendants have violated Articles 5, 6, 7, and 83.5 of the GDPR.

Along with the complaint, they submitted the signed employment contract, the traffic violations notified to the defendant, the vehicle information provided by the DGT, and the complaints filed with the Labor Inspectorate and the Civil Guard.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on December 1, 2022, the aforementioned complaint was forwarded to the defendant for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on December 12, 2022, as evidenced by the acknowledgment of receipt in the file. No response has been received to this forwarding letter.

THIRD: On January 12, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On February 14, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the defendant for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

In view of all the actions taken by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

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3/4

FIRST: On November 5, 2020, and November 13, 2020, the claimant was notified of two fines for speeding violations committed on August 20, 2020, and June 21, 2020, respectively, despite the fact that the offending vehicle (a Mercedes CLS 500, with license plate 5975 DVR) is owned by B.B.B.

SECOND: It has not been verified that the offending vehicle (a Mercedes CLS 500, with license plate 5975 DVR) is a company car of the entity being claimed, TRC TRUCKS 2020, S.L., nor that it has had any involvement in the claimed events.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In this case, the claimant receives notification identifying them as responsible for a traffic violation committed on June 21, 2020, despite the fact that the owner of the offending vehicle is B.B.B., sister of the administrator of the company TRC TRUCKS 2020, S.L., for which the claimant was working. These facts were reported to this Agency, resulting in the opening of procedure TD/00045/2021, with a favorable resolution issued on April 12, 2022, urging the defendant to provide the claimant with certification addressing the right to erasure or to deny it with justification.

For these purposes, it should be noted that at the time the traffic violation was allegedly committed, the claimant had no employment relationship with the defendant.

Additionally, the General Directorate of Traffic has confirmed that the ownership of the vehicle is that of the sister of the administrator of the defendant.

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4/4

III

After a thorough review of the documents in this file, and confirming by the General Directorate of

Traffic that the ownership of the offending vehicle related to the fines imposed on the claimant (a Mercedes CLS 500, with license plate 5975 DVR) is held by B.B.B., it is decided to archive this procedure as it cannot be established that said vehicle is owned by the entity being claimed, TRC TRUCKS 2020, S.L., as a company car.

Therefore, upon becoming aware of these facts, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to the claimant and the defendant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Mar España Martí

Director of the Spanish Agency for Data Protection

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